

SECTION II **CONTINUING MEDIATION EDUCATION (CME)**

Minimum required: **10 total hours**, including at least **2 mediator ethics hours** (8 CME + 2 Ethics = 10)

Maximum allowed: **18 total hours** (10 total CME + carryover credit)

All continuing education *that is not carryover* must have occurred since your last recertification date or, if this is your first recertification, since the date of your original certificate.

Instructions: ATTACH ALL CME EVIDENCE (typically verified by the ADR 1010 form; core course credit may use the ADR 1006 form). Mediator ethics must be live (synchronous), see Information p4. You may carry over up to 8 hours for the next recertification period; all carryover is counted as non-ethics.

Please note the number of each type of CME credit earned:

Category	Max	CME Hours
A: Carryover CME credits from last Recertification	(8)	
B: Mediator ETHICS trainings (DRS approved) (minimum 2)		
NON-ETHICS trainings (DRS approved)	(16)	
Pre-recorded webinars or videos	(4)	
Mediator Peer Consultation	(6)	
Mediator Self-Reflection	(3)	
Core Course training Ethics _____ Non-Ethics _____	(8)	
Trainer credit (teaching mediation or CLE) Ethics _____ Non-Ethics _____	(6)	
Total (minimum 10)	(18)	

C: Carryover credit plus current CME credit for Next Recertification

+ - 10 =			
CME carryover (A)	CME Earned (B)	10 for Recert	CME carryover (max 8) (C)

SECTION III **BACKGROUND**

1. Since your last recertification (or certification, if this is your first recertification) have you had a disciplinary action related to a profession, including mediation (such as a professional license suspended or revoked) had any professional privileges curtailed; and/or relinquished a professional privilege or license while under investigation?
No _____ If Yes, please state: _____
2. Since your last recertification (or certification, if this is your first recertification) have you been convicted of a felony, a misdemeanor (includes reckless and aggressive driving), a traffic violation resulting in

suspension or revocation of a driver's license, or a DUI/DWI? Conviction includes guilty or *nolo contendere* pleas.

No _____ If Yes, please list, including the specific code section(s) violated.

Please describe the impact, if any, that such disciplinary actions or conviction(s) could have on your ability to provide mediation services.

SECTION IV **EVALUATION AND CERTIFICATION**

I understand that in court-referred cases, **I will provide an initial orientation session for the parties, and their lawyers if they choose to attend, at no cost to the parties.**

I understand that I am obligated as a condition of my continuing certification:

- (1) to familiarize myself with, and abide by, the Standards of Ethics and Professional Responsibility for Certified Mediators, adopted by the Judicial Council of Virginia effective July 1, 2011; and
- (2) to ensure that Forms ADR-1002 (Evaluation of Mediation Session(s) and Mediator(s)) are provided to all parties referred from the courts.

I understand that to carry over excess CME to my next recertification period, I must report it on this form and attach evidence.

I also hereby certify that the information provided in this application is true to the best of my knowledge and accurately reflects my qualifications to provide mediation services in cases referred through the court system of the Commonwealth of Virginia. I understand that all information herein is subject to verification.

Signature of Applicant

Date

Please forward this application to:

Dispute Resolution Services
Office of the Executive Secretary
Supreme Court of Virginia
100 N. Ninth Street, Third Floor
Richmond, VA 23219

Or email: drsapplications@vacourts.gov

If you have any questions or comments, please contact Dispute Resolution Services, 804-786-6455.

Important Information Regarding the Recertification Process

1. Recertification is required every 2 years by October 31st. Note the first recertification date may be less than 2 years after initial certification, depending on the date certified.
2. An applicant for recertification must complete and submit [**FORM ADR-1003**](#) and evidence of CME for courses taken between the last recertification date and October 31st of the year currently due.
3. DRS will keep a record of carryover hours for each mediator but recommends mediators keep detailed records of CME. Discrepancies may result in application delays.
4. Mediator ethics are based upon the [Virginia Standards of Ethics](#) and are distinct from attorney ethics. Approved trainings must be live and interactive, attended in person or synchronously via webinar.
5. A maximum of four non-ethics credits may be obtained from a course that is pre-recorded, asynchronous, on-demand webinar, or video.
6. A maximum of eight credits, ethics or non-ethics, may be obtained from a Core Course training.
7. Mediators participating in an approved mediator peer consultation sessions may receive up to 6 hours of CME credit for attendance at such sessions.
8. Mediators may receive up to 3 hours of CME credit for completing Self-Reflection exercises following a mediation. To receive credit, **FORM ADR-1011** must be submitted at least 30 days in advance.
9. Mediators may request approval by DRS for education relevant to their practice received from outside organizations to meet the requirements for continuing education. ***When requesting approval, the applicant should submit a [Mediator Application for CME Course Certification \(ADR-2002\)](#).***
10. Mediator-trainers who provide advanced mediation skills training or present a CLE seminar related to the subject of mediation may receive up to 6 hours of CME credit. To request credit, attach a copy of the ADR 1010 form for each course distributed to participants.
11. Notification of recertification shall be made by email of letter and certificate. A letter denying recertification will state the grounds for the denial and reference the applicant's right to request reconsideration by the Executive Secretary of the Supreme Court of Virginia. The written request, with accompanying rationale for reconsideration, must be received by the Executive Secretary within 30 calendar days following the denial letter.
12. A mediator denied recertification may reapply for initial certification after 6 months from the date of the final denial. In the sole discretion of DRS, partial waivers of training and mentorship requirements may be granted on a case-by case basis.
13. Mediators who do not meet the recertification requirements may not hold themselves out as certified mediators, may not mediate court-referred cases without a certified co-mediator, may not mentor others seeking certification, and may not train others seeking certification.
14. A mediator whose certification lapses from not meeting the recertification requirements in a timely manner may contact DRS if they wish to recertify. In the sole discretion of DRS, deviations from the initial certification requirements may be allowed on a case-by-case basis.
15. If a core course trainer is recertified after a lapse of 2 or more years, they must reapply for trainer certification.